

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 8, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Johnson and Dr. Rinne both declared a conflict of interest and vacated council chambers. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Cook and Mr. Esquibel, item #23(d) was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Dr. Aldrich and Mr. Cook, item #23(h) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers.

[CA] Minutes from Regular Meeting of the Governing Body on April 24, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Stella Polare LLC d/b/a L’Osteria Mondello, 1507 Stillwater Ave. Ste. D, Cheyenne, WY. Public comment was made by: Jasmin “Dave” Agovic, Owner of L’Osteria Mondello. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Ridge Road, between Jackson Street and Douglas Street. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4499)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located at 5224 Ridge Road (west of Ridge Road, between Jackson Street and Douglas Street). Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4500)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium Density for land located on Lots 1 and 2, Block 1, Twin 22 Subdivision. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4501)

ORDINANCE –3rd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision Governing contract approvals. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4502)

ORDINANCE –3rd READING – Amending Ordinance No. 4429 updating the City of Cheyenne’s Solid Waste Fee Schedule. Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. (#4503)

ORDINANCE –1st READING – Ordinance appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024 – referred to Committee of the Whole. (Sponsor – Mr. Johnson)

ORDINANCE –1st READING – Ordinance approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Ordinance amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for land located at Lot 29, Block 1, Eastridge – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Major Street Plan Official Map 2017, by updating the entire Major Street Plan Official Map with newly platted and built roads and with the most recent Master Transportation Plan (Connect 2045) and other recently adopted Master Transportation Amendments – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission Ground Water Exploratory Grants Program for the Borie Wellfield Expansion Project in the amount of \$400,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#6322)

[CA] RESOLUTION – Approving Water and/or Sanitary Sewer Service, by Outside User Agreement, for Advanced Communications Technology Inc, for the property at Lot 3, Block 1, North Range Business Park, 13th Filing, Laramie County, Wyoming (located southeast of the intersection of Happy Jack Road and Bruns Way). Motion (per Consent Agenda) carried. (#6323)

[CA] RESOLUTION – Adopting the City of Cheyenne’s Annual Action Plan 2023, prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#6324)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Stadium View Addition, 4th Filing, a replat of Lots 8 and 9, Block 4, Stadium View Addition, 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located northeast of the intersection of Bevans Street and Grove Drive) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the City of Cheyenne to join with other political subdivisions of the State of Wyoming as a participant in the Wyoming Cooperative Liquid Assets Securities System (Wyoming CLASS) to pool funds for investment – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Bipartisan Infrastructure Law to assist in constructing a passenger boarding bridge connected to the passenger terminal – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] Lease Agreement between the City of Cheyenne and Union Telephone Company for telecommunications operations and tower maintenance (Revenue to the City). Motion (per Consent Agenda) carried. (#7751)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the Summer Rec Camp Program (Recreation Programs Fund). Motion (per Consent Agenda) carried. (#7752)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2023 Cheyenne Frontier Days celebration (Revenue to the City). Motion (per Consent Agenda) carried. (#7753)

Agreement between the City of Cheyenne and Carebridge Corporation for the Employee Assistance Program (EAP) (General Fund). Mr. Johnson declared a conflict of interest and vacated council chambers. Mr. White moved to approve, seconded by Mr. Roybal. Dr. Aldrich moved to amend by removing the AI component from Addendum B of the contract, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body present in council

chambers with the exception of Mr. Roybal and Mr. Segrave voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present in council chambers. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Segrave. (#7754)

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation for the design of the Dry Creek Dredging and Maintenance Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$199,601.50). (#7755)

[CA] Professional Services Agreement between the City of Cheyenne and AVI Professional Corporation for the Public Works Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$265,290.00). (#7756)

Pipeline Easement Agreement between the City of Cheyenne and Samson Exploration, LLC for installation and maintenance of pipelines on City owned property (Revenue to the City). Mr. White moved to approve, seconded by Mr. Esquibel. Mr. White moved to postpone to May 22, 2023, seconded by Mr. Esquibel. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. White.

Memorandum of Understanding between the City of Cheyenne and Climb Wyoming to provide employment opportunities for Climb Wyoming participants within the City of Cheyenne. Mr. White moved to approve, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated May 8, 2023, seconded by Mr. Esquibel. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Public comment was made by: Angi Lund, Business Liaison with Climb Wyoming. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. (#7757)

[CA] Memorandum of Understanding pursuant to Resolution No. 6316 between the City of Cheyenne and the Children’s Museum of Cheyenne for Infrastructure Enhancements (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$288,250.00). (#7758)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Regional Medical Center, and American Medical Response to establish the terms and conditions under which the parties will manage mutual care as it relates to community paramedicine and non-emergency transport – referred to Finance Committee.

[CA] Contract Modification #4 to Contract #7427 between the City of Cheyenne and Russell+Mills Studios Inc. for the East Cheyenne Community Park Master Site Development Plan (2017 Specific Purpose Option Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$30,115.00). (#7427)

[CA] Contract Modification #1 to Contract #7606 between the City of Cheyenne and Western EcoSystems Technology for environmental services for the Dry Creek Dredging Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$72,988.00). (#7606)

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees (Various City Funds). Motion (per Consent Agenda) carried. (#6837)

[CA] Consideration of Bid #S-19-23 for an Agreement between the City of Cheyenne and T C Solutions for the Cheyenne Junior League Storage Facility Construction Project (Development Impact Fees and Cheyenne Community Recreation District Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$144,406.00). (#7759)

[CA] Consideration of Bid #S-21-23 for an Agreement between the City of Cheyenne and Miller & Sons Construction, Inc. for the 2023 Miscellaneous Concrete Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$1,013,150.98). (#7760)

[CA] Consideration to Purchase between the City of Cheyenne and High West Energy for installation of 3 Phase Power at the new Countryside & Whitney Fire Station (2017 and 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$120,000.00).

[CA] Consideration of Bid #E-22-23 for furnishing Bituminous Asphalt Hot Mix, Tack Oil, and Cold Mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-23-23 for furnishing Aggregates on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-20-23 for an Agreement between the City of Cheyenne and Reiman Corp. for the Greater Cheyenne Greenway, Lions Park Greenway Spot Repair (2017 & 2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Stryker for a Lifepak 15 Monitor/Defibrillator for the Cheyenne Fire Rescue Department (Wyoming Department of Health, Community Emergency Medical Services Grant) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Power Equipment Company for the repair of a Paving Machine for the Street and Alley Department (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Bar and grill liquor license application filed with the City Clerk's Office for FAFO Restaurant Group LLC d/b/a Dog Haus Restaurant, 3838 Atkins St., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 8, 2023 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Cody, Wyoming. Motion (per Consent Agenda) carried (Councilman Dr. Rinne, Official Voting Delegate; Mayor Collins, Alternate Voting Delegate).

Urban Renewal Authority 2022 Annual Report. Dr. Rinne moved to acknowledge receipt of the report, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

There were no comments made on the Voucher Report as presented.

The following members of the governing body made comments under other business: Dr. Aldrich and Mr. White.

Mr. Johnson moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii), seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: City Attorney, City Clerk, City Engineer and Mark Stewart, Davis & Cannon LLP. (Clerk’s Note: executive session convened at 6:39 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 7:34 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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